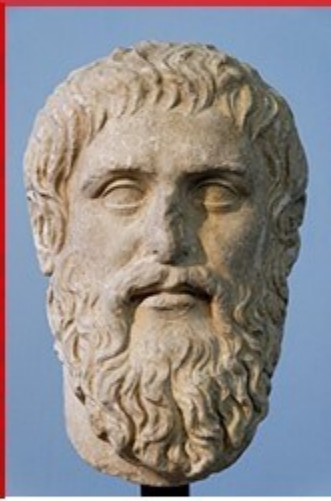
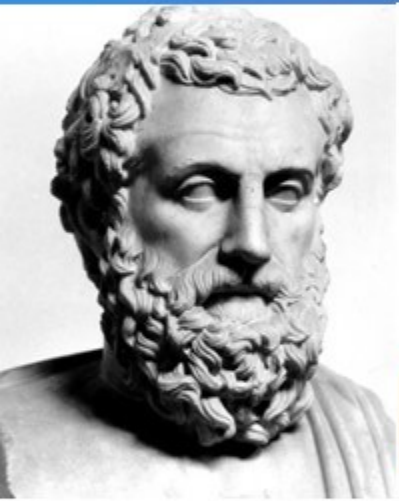


ETHICS, INTEGRITY & APTITUDE



APTITUDE

MODULE – 24

**FOUNDATIONAL VALUES
FOR CIVIL SERVICE**

RECOMMENDATIONS FOR REFORMS
IN CIVIL SERVICE

K SANTANAM

Some committees have recommended, from time to time, *reforming the civil services* with respect to to the *code of conduct and ethics* of the civil servants.

*Committee on Prevention of Corruption
(Santanam Committee), 1964*

- Suggested **rules** to be framed for **governing the conduct of civil servants**.
- Suggested that **values like altruism** and **empathy** for the poor, are hard to imbibe after joining the services. These need to **be instilled in childhood** through various institutions like family, school etc.

ETHICS, INTEGRITY & APTITUDE

RECOMMENDATIONS FOR REFORMS IN CIVIL SERVICE

THE FIFTH CENTRAL PAY COMMISSION (1996-2006)

- Said that **Indian civil servants** are able to get things done in the **shortest possible time** with **minimum inputs**.
- Observed that "it is this class of administrative entrepreneurs - **clean, honest and performance oriented** - who **should emerge** on the Indian scene to make the civil service command the respect of all sections of society".



- Its recommendations covered:
 - i. **integrity** in public service and removal from service of corrupt officials
 - ii. the need for **public friendly administration**
 - iii. constitution of a high level panel comprising Comptroller & Auditor General, Central Vigilance Commissioner and the Cabinet Secretary to **ensure clean and accountable government**
 - iv. formulation of a **policy of transfer** for civil servants

SOME OF THE COMMITTEE'S TERMS OF
REFERENCE WERE:

- Making the Civil Service responsive and citizen-friendly; transparent; accountable; and ethical in its (a) actions and (b) interface with the people
- Protecting the civil service against wrongful pressure exerted by (a) administrative superiors (b) political executive (c) business interests (d) other vested interests

P C HOTA COMMITTEE REPORT, 2004

- Aptitude & leadership test may be introduced for selection & that domain assignments should be introduced for the civil servants for acquisition of skills required.
- As no competitive examination can be a proof against unsuitable candidates for the public service, the committee recommended invoking the probation rules to weed out such officers.
- Also a performance review after 15 years of service is recommended to remove such officers.

A FEW MORE
RECOMMENDATIONS

The Central Civil Services Conduct Rules, 1964, The All India Services Conduct Rules 1968, Code of Ethics, 1997 and the Public Service Bills (Draft) 2006 and 2007 recommended that

A public servant should:

- uphold the **rule of law** & **respect** human rights
- maintain **objectivity** and **transparency** in their conduct with the public & in discharge of their duties
- maintain utmost **impartiality** in respect of service matters

- be **accountable** for their actions for **timeliness** of **delivery**, **quality** of service etc.
- be **accessible** to the people
- ensure effective and efficient use of public funds and **avoid extravagance**
- **not exploit** their **position of power** for any personal gains, not accept bribe
- **perform** the task assigned **in a set time frame**
- discharge the duty in a **courteous** manner and with full **devotion**
- **not adopt dilatory tactics** in their dealings with the public

ETHICS, INTEGRITY & APTITUDE

VALUES OF PUBLIC SERVICES AS PER PUBLIC SERVICES BILL DRAFT 2006

- **Allegiance** to the Constitution and the law, democracy, nationalism, sovereignty & integrity of India and the security of the nation
- **Function** in apolitical manner, **act** objectively, impartially, honestly, equitably, and in a fair and just manner
- **Act with** integrity and in a courteous and just manner
- Establish **high standards**, and **ensure** quality service, effective working and prompt decision making
- Be **accountable** for the decisions
- **Establish merit** as the fundamental principle in employment, promotion and placements
- Ensure that **public money** is **used with** utmost **economy** and **care**

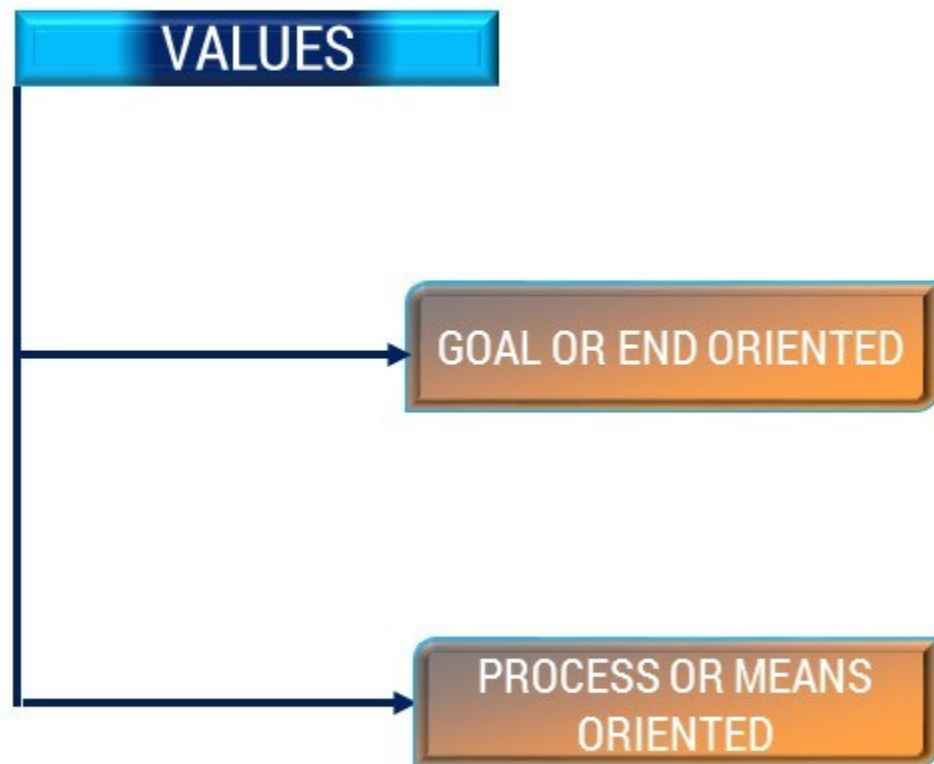
- **Discharge functions with** due regard to diversity of the nation/community and religion but without discrimination of caste, community, religion, gender or class and duly protecting the interest of poor, underprivileged and weaker sections
- **Provide** honest, impartial and frank advice to political executive



VALUES AS PER PUBLIC SERVICES BILL DRAFT 2007

- (a) patriotism and upholding national pride; (b) allegiance to the Constitution and the law of the nation; (c) objectivity, impartiality, honesty, diligence, courtesy and transparency; (d) maintain absolute integrity
- 

Values are hierarchical: In case of conflict between two values, one precedes the other in its importance.



End oriented: justice – social, economic or political
Means oriented: empathy, discipline and integrity

Values are the **collectively shared principles** that **guide** judgement about what is good and proper. Values form **the foundation of the public/civil service**.

Values stated in public documents **provide the basis for** an environment where citizens know about the mission and the vision of public organisations and they also give overall guidance for daily civil service operations.

Value orientation can be of two types: **Goal or end oriented** and **process or means oriented**.

The **Seven Social Sins**, as quoted by **Mahatma Gandhi** in "Young India," 1925:

Politics without principles

Wealth without work

Leisure without conscience

Knowledge without character

Commerce without morality

Science without humanity

Worship without sacrifice

For every situation we don't have time to 'test' the case on ethics theories, and values **provide the standards** based on which we can quickly evaluate and decide.

Bureaucrats have become directly accountable to citizens. They have **to respond to moral compass of the citizens**.

As civil services officers **have discretionary powers**, they must be **provided with guiding principles** to prevent abuse of power.

Various committees have recommended foundational values for civil services. Important ones are: **Nolan committee**; **OECD principles**; and **2nd ARC**: "ethics in governance" report.

1

SELFLESSNESS

2

INTEGRITY

3

OBJECTIVITY

4

ACCOUNTABILITY

7

LEADERSHIP

6

HONESTY

5

OPENNESS

NOLAN PRINCIPLES

1 SELFLESSNESS

Should **act solely in terms of the public interest**. They should not do so in order to gain financial or other benefits for themselves, their family or their friends.

2 INTEGRITY

Should **not place themselves under any financial or other obligation** to outside individuals or organisations that might seek to influence them in the performance of their official duties.

3 OBJECTIVITY

In carrying out public business, including making public appointments, awarding contracts, or recommending individuals for rewards and benefits, holders of public office **should make choices on merit**.

Integrity: the quality of being honest and having strong moral principles that you refuse to change

Objectivity: the fact of being based on facts and not influenced by personal beliefs or feelings

4 ACCOUNTABILITY

Are **accountable** for their decisions and actions to the **public** and must submit themselves to whatever scrutiny is appropriate to their office.

5 OPENNESS

Should be **as open as possible** about all the decisions and actions that they take. They should give reasons for their decisions and restrict information only when the wider public interest clearly demands.

6 HONESTY

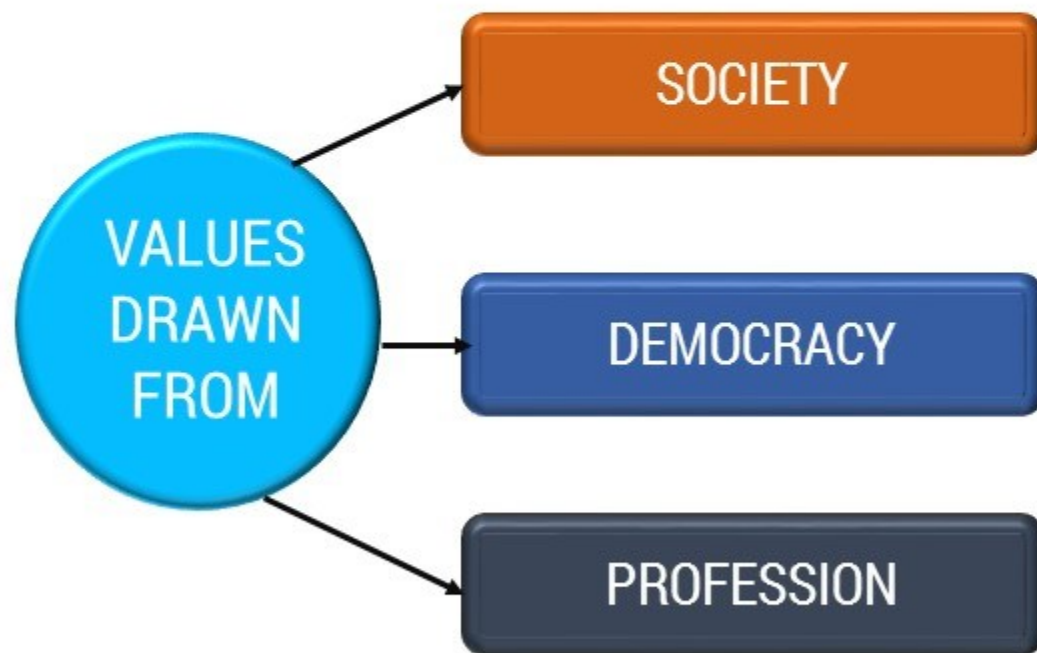
Have a duty to declare any private interests relating to their **public duties** and to take steps to resolve any conflicts arising in a way that protects the public interest.

7 LEADERSHIP

Should **promote and support** these principles by **leadership** and example.

OECD (Organization for Economic Cooperation and Development) also came up with '**Principles for Managing Ethics in the Public Service**' in 1998.

Values are drawn from three sources: **Society**, **Democracy**, and **Profession**.



The sources from which the OECD countries draw their values are: society, democracy, and profession.

The countries hold a combination of “traditional” and “new” public service values.

“Traditional” values reflect the fundamental mission of the public service, while “new” values articulate the requirements of a new ethos.

Some OECD countries listed both basic values and derivative values. The latter requires that the generally expected behaviour be applied in a more specific situation or relationship.

THE MOST COMMON
VALUES

- Impartiality
- Legality
- Integrity
- Transparency
- Efficiency
- Equality
- Responsibility
- Justice

Newly stated professional values, such as service-mindedness, achieving results or earning of citizens' satisfaction, **indicate** the **new approach** in the public management ethos.

THE COMPLETE LIST OF VALUES

- Respect of official secrets
- Professionalism
- Service in the public interest
- Service to the whole community
- No private interests
- No interaction of private and public interests
- Avoidance of conflict of interest
- Obedience
- Respect for State resources
- Loyalty
- Fidelity to the State
- Proper disclosure of information

- Impartiality
- Neutrality
- Objectivity
- Legality
- Integrity
- Honesty
- Transparency
- Openness
- Equality
- Responsibility
- Accountability
- Justice
- Confidentiality
- Kindness
- Humanity

Democratic Values:

- Public servants shall give **honest and impartial advice** and make all information relevant to a decision available to Ministers.
- Public servants shall loyally **implement ministerial decisions, lawfully taken.**
- Public servants shall **support both individual and collective ministerial accountability** and provide Parliament and Canadians with information on the results of their work.

Canada adopted Values and Ethics Code in 2003, based on the recommendations of the OECD committee report.



Public Service Values: Public servants shall be guided in their work and their professional conduct by a balanced framework of public service values: democratic, professional, ethical and people values.

Professional Values: Serving with competence, excellence, efficiency, objectivity and impartiality.



- Public servants must **work within the laws** of Canada and **maintain** the tradition of the **political neutrality** of the Public Service.
- Public servants shall endeavour to **ensure the proper, effective and efficient use of public money**.
- In the Public Service, **how ends are achieved should be as important as the achievements themselves**.
- Public servants should constantly **renew their commitment to serve** Canadians **by** continually improving the quality of service, by adapting to changing needs through innovation, and by improving the efficiency and effectiveness of government programs and services offered in both official languages.
- Public servants should also strive to ensure that the **value of transparency in government is upheld** while respecting their duties of confidentiality under the law.

ETHICS, INTEGRITY & APTITUDE

VALUES AND ETHICS CODE, CANADA 2003

- Public servants shall perform their duties and arrange their private affairs so that **public confidence and trust in the integrity, objectivity and impartiality** of government are conserved and enhanced.
- Public servants shall act at all times in a manner that will **bear the closest public scrutiny**; *an obligation that is not fully discharged by simply acting within the law.*
- Public servants, in fulfilling their official duties and responsibilities, shall **make decisions in the public interest**.
- If a conflict should arise between the private interests and the official duties of a public servant, the **conflict shall be resolved in favour of the public interest**.

Ethical Values: Acting at all times in such a way as to uphold the public trust.



ETHICS, INTEGRITY & APTITUDE

VALUES AND ETHICS CODE, CANADA 2003

People Values: Demonstrating respect, fairness and courtesy in their dealings with both citizens and fellow public servants.



- Respect for human dignity and the value of every person should always inspire the exercise of authority and responsibility.
- People values should reinforce the wider range of Public Service values. Those who are treated with fairness and civility will be motivated to display these values in their own conduct.
- Public Service organizations should be led through participation, openness and communication and with respect for diversity and for the official languages of Canada.
- Appointment decisions in the Public Service shall be based on merit.
- Public Service values should play a key role in recruitment, evaluation and promotion.

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2
0 9 8 4 9 9 4 2 2 9 9